

The Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014

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The Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014

UNION OF INDIA

India

The Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014

Rule

THE-PUBLIC-SERVANTS-FURNISHING-OF-INFORMATION-AND-ANNUAL-RETURN-OF-ASSETS-AND-LIABILITIES-AND-THE-LIMITS-FOR-EXEMPTION-OF-ASSETS-IN-FILING-RETURNS-RULES-2014 of 2014

Published on 14 July 2014

Commenced on 14 July 2014

[This is the version of this document from 14 July 2014.]

[Note: The original publication document is not available and this content could not be verified.]

The Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014

Published vide Notification New Delhi, the 14th July, 2014

Ministry of Personnel, Public Grievances And Pensions
(Department of Personnel and Training)

G.S.R. 501(E). - In exercise of the powers conferred by sub-section (1) read with clause (k) and clause (l) of sub-section (2) of section 59 of the Lokpal and Lokayuktas Act, 2013 (1 of 2014

), read with section 44 and section 45 of the said Act, the Central Government hereby makes the following rules to provide for furnishing of information and annual return containing declaration of assets and liabilities by public servants and to provide for minimum value of the assets which the competent authority may exempt from furnishing such information by a public servant under section 45 of the said Act, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Lokpal and Lokayuktas Act, 2013 (1 of 2014

);

(b)

"Appendix" means an Appendix to these Rules;

(c)

"annual return" means the annual return to be filed by a public servant under sub-section (4) of section 44;

(d)

"declaration" means the declaration of assets and liabilities made by a public servant under sub-section (1) of section 44;

(e)

"Form" means a Form specified in Appendix-II;

(f)

"information" means the information required to be furnished by a public servant under sub-section (3) of section 44;

(g)

"section" means the section of the Act.

3.

Manner of submission of information and annual return.

(1)

Every public servant shall make a declaration of his assets and liabilities under sub-section (1) of section 44 in the format specified in Appendix-I, along with the information required under sub-section (2), or as the case may be, sub-section (3), and the annual return under sub-section (4) of section 44 in Forms I to IV specified in Appendix-II.

(2)

Every public servant shall file declaration, information or return, as the case may be, regarding his assets and liabilities as on the 31st day of March every year, to the competent authority as referred to in clause (c) of sub-section (1) of section 2, on or before the 31st day of July of that year:

Provided that the public servants who have filed declarations, information and annual returns of property under the provisions of the rules applicable to such public servants shall file the revised declarations, information or as the case may be, annual returns as on the 1st day of August, 2014, to the competent authority on or before the 15th day of September, 2014.

[Provided further that the public servants who have filed declarations, information and annual returns of property under

the provisions of the rules applicable to such public servants, shall file the revised declarations, information or as the case may be, annual returns as on the 31st day of March, 2015, to the competent authority [on or before the 15th day of April, 2015.]

[Inserted by Notification No. G.S.R. 536(E), dated 3.7.2015 (w.e.f. 14.7.2014).]

4.

Minimum value of assets which competent authority may exempt from furnishing of information.

- The competent authority may, for reasons to be recorded in writing, exempt in accordance with the proviso to section 45, a public servant from filing the information in respect of any asset, if the value of such asset does not exceed four months basic pay of the public servant or rupees two lakhs, whichever is higher.

Appendix-I

[Rule 3(1)]

Return of Assets and Liabilities on First Appointment or as on the 31st March, 20.....*

(Under Section 44 of the Lokpal and Lokayuktas Act, 2013.)

1. Name of the Public servant in full

.....

(in block letters)

2. (a) Present public position held

.....

(Designation, name and address of organisation)

.....

(b) Service to which belongs

.....

(if applicable)

Declaration:

I hereby declare that the return enclosed namely, Forms I to IV are complete, true and correct to the best of my knowledge and belief, in respect of information due to be furnished by me under the provisions of section 44 of the Lokpal and Lokayuktas Act, 2013.

Date.....

Signature.....

* In case of first appointment please indicate date of appointment.

Note 1. This return shall contain particulars of all assets and liabilities of the public servant either in his/her own name or in the name of any other person. The return should include details in respect of assets/liabilities of spouse and dependent children as provided in Section 44 (2) of the Lokpal and Lokayuktas Act, 2013.

(Section 44(2): A public servant shall, within a period of thirty days from the date on which he makes and subscribes an oath or affirmation to enter upon his office, furnish to the competent authority the information relating to-

(a)

the assets of which he, his spouse and his dependent children are, jointly or severally, owners or beneficiaries;

(b)

his liabilities and that of his spouse and his dependent children.)

Note 2. If a public servant is a member of Hindu Undivided Family with co-parcenary rights in the properties of the family either as a 'Karta' or as a member, he should indicate in the return in Form No. III the value of his share in such property and where it is not possible to indicate the exact value of such share, its approximate value. Suitable explanatory notes may be added wherever necessary.

Note 3. "dependent children" means sons and daughters who have no separate means of earning and are wholly dependent on the public servant for their livelihood. (Explanation below Section 44(3) of Lokpal and Lokayuktas Act, 2013).

Appendix-II

[Rule 3(1)]

Form No.1

Details of Public Servant, his/her spouse and dependent children

Sl.No.

Name

Public Position held, if any

Whether return being filed by him/her separately

1.

Self

2.

Spouse

3.

Dependent-1

4.

Dependent-2

5.*

Dependent-3

*Add more rows, if necessary

Date.....

Signature.....

Form No. II

Statement of movable property on first appointment or as on the 31st March, 20.....

Details of the movable assets of self, spouse and dependent children:

Sl.No.

Description

Amount in Rupees

Self

Spouse

Dependent

Dependent

Dependent

1

2

3

(i)

Cash in hand

(ii)

Details of deposit in Bank accounts

(FDRs, Term Deposits and all other types of deposits including saving accounts), Deposits with financial Institutions, Non-Banking financial Companies and Cooperative societies and the amount in each such deposit

Name of Bank/Financial Institution

& Nature of Deposit

(iii)

Details of investment in Bonds, debentures/shares and units in companies/mutual funds and others

Name of company

(iv)

Details of investment in NSS, Postal Saving, Insurance policies and investment in any Financial instruments in Post office or Insurance Company

Nature of investment

(v)

Detail of deposit in Provident

Fund/New Pension Scheme

Nature of Investment

(vi)

Personal loans/advance given to any person or entity including firm, company, Trust etc. and other receivables from debtors and the amount (exceeding) (a) two month basis pay, where applicable. (b) Rupees one lakh in other cases)

Name of Debtor

(vii)

Motor Vehicles/Aircrafts/

Yachts/Ships (Details of Make, registration number etc., year of purchase and amount)

Nature of vehicle, registration

no. & year of purchase

(viii)

Jewellery,

bullion and valuable thing(s)

(give

details of weight)

JEWELLERY

Bullion

Gold

Silver

Precious stones/precious metals

Gold

Silver

Precious stones/precious metals

(ix)

Any other assets

Date

Signature

Note 1: Assets in joint name indicating the extent of joint ownership will also have to be given.

Note 2 : In case of deposits/Investments, the details including Amount, date of deposit, the scheme, Name of the Bank/Institution and Branch are to be given

Note 3: Value of Bonds/Share Debentures as per current market value in Stock exchange in respect of listed companies and books values in case of unlisted firms.

Note 4: Details including amount is to be given separately in respect of each investment.

Note 5: Under (ix) details of movable assets not covered in (i) to (viii) above valuing individually over two months basic pay (where applicable), or Rs. 1.00 lakh may be indicated.

Form No. III

Statement of immovable property on first appointment or as on the 31st March, 20.....

(e.g. Lands, House, Shops, Other Buildings, etc.)

[Held by Public Servant, his/her spouse and dependent children]

Sl.No.

Description of property (Land/House/ Flat/ Shop/ Industrial etc.)

Precise location (Name of District, Division

Taluk and Village in which the property is situated and also its

distinctive number, etc.)

Area of land (in case of land and buildings)

Nature of land in case of landed property

Extent of interest

If not in name of public servant, state in whose name held and his/her relationship, if any to the public servant

Date of acquisition

How acquired (whether by purchase, mortgage, lease, inheritance, gift or otherwise) and name with details of person/persons from whom acquired (address and connection of the Government servant, if any, with the person/ persons concerned) (Please see Note 1 below) and cost of acquisition.

Present value of the property (If exact value not known, approx value may be indicated)

Total annual income from the property

Remarks

1
2
3
4
5
6
7
8
9
10
11
12

Date.....

Signature.....

Note (1): For purpose of Column 9, the term "lease" would mean a lease of immovable property from year to year or for any term exceeding one year or reserving a yearly rent. Where, however, the lease of immovable property is obtained from a person having official dealings with the Government servant, such a lease should be shown in this Column irrespective of the term of the lease, whether it is short term or long term, and the periodicity of the payment of rent.

Form No. IV

Statement of Debts and Other Liabilities on first appointment or as on 31st March, 20.....

Sl.No.

Debtor (Self/ Spouse or dependent children)

Amount

Name and address of Creditor

Date of incurring Liability

Details of Transaction

Remarks

1
2
3
4
5
6
7

Date.....

Signature.....

Note 1: Individual items of loans not exceeding two months basic pay (where applicable) and Rs. 1.00 lakh in other cases need not be included.

Note 2: The statement should also include various loans and advances (exceeding the value in Note 1) available from the employer like advance for purchase of conveyance, house building advance, etc. (other than advances of pay and travelling allowance), advance from the GP Fund and loans on Life Insurance Policies and fixed deposits.

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